

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Taylor Jackson	Team: Squad #06	CCRB Case #: 202308498	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 09/02/2023 6:50 AM	Location of Incident: Second Avenue and East 14th Street	18 Mo. SOL 3/2/2025	Precinct: 09
Date/Time CV Reported Thu, 09/07/2023 4:37 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 09/07/2023 4:37 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Stanley Manel	18758	961909	009 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Eric Pedroli	21823	962671	009 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Stanley Manel	Abuse: Police Officer Stanley Manel issued a retaliatory summons to § 87(2)(b)	A . Substantiated

Case Summary

On September 7, 2023, § 87(2)(b) filed this complaint through the CCRB Call Processing System.

On September 2, 2023, at approximately 6:50 a.m., § 87(2)(b) was pulled over by PO Stanley Manel in the vicinity of Second Avenue and East 14th Street in Manhattan for a motor vehicle infraction. PO Manel issued § 87(2)(b) a summons. § 87(2)(b) responded by calling PO Manel a “piece of shit.” PO Manel then issued § 87(2)(b) another summons for failure to signal a lane change (**Allegation A: Abuse of Authority, Substantiated**).

Body Worn Camera footage was provided by NYPD Legal and can be found in IA 19. PO Manel’s BWC captured the entirety of § 87(2)(b) traffic stop (BR 1).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Stanley Manel issued a retaliatory summons to § 87(2)(b)

PO Manel’s BWC, starting at the 1:00 minute mark, captures the entirety of § 87(2)(b) traffic stop (BR 1). At 1:00, PO Manel exits his vehicle, walks up to § 87(2)(b) who says that he is running late to work and why he was being stopped. PO Manel replies that § 87(2)(b) disregarded three no-turn signs on 14th Street and Second Avenue, and that § 87(2)(b) did not use his signal when he made the illegal turn. § 87(2)(b) apologizes and explains that he did not see the no-turn signs, and PO Manel asks him for his license and registration, and he complies. At 2:51, PO Manel’s partner, PO Eric Pedroli, asks PO Manel what § 87(2)(b) said to him. PO Manel replies, “he was running late to work but had time to stop at McDonalds.” At 9:15, PO Manel walks back over to § 87(2)(b) and he hands § 87(2)(b) his license back with a summons. § 87(2)(b) replied that it was his birthday weekend and asked PO Manel to just give him a warning. § 87(2)(b) then tells PO Manel “You’re fucking ridiculous,” and takes the summons and his documentation back from him. PO Manel replies that § 87(2)(b) is late for work, and § 87(2)(b) calls him “a piece of shit.” PO Manel begins to walk away and says, “no problem,” and § 87(2)(b) repeats that PO Manel is “a piece of shit.” PO Manel stops walking away and asks § 87(2)(b) if he wants another summons because he could issue him a summons for failing to signal as well. § 87(2)(b) continues to call PO Manel “a piece of shit,” and PO Manel tells § 87(2)(b) not to leave yet. At 9:40, PO Manel walks back over to § 87(2)(b) window and tells him to give him back the license and vehicle registration. At 10:00, § 87(2)(b) asks why he needs to give his license and vehicle registration back to him, and PO Manel replies, “Because I was just a piece of shit a second ago, remember?” § 87(2)(b) says that it is “fucked up,” and PO Manel again tells him to give back the license and vehicle registration. At 10:15, § 87(2)(b) hands back his license and vehicle registration, and PO Manel walks back to his vehicle with the documents. At 10:25, PO Manel gets back into the vehicle with his partner, PO Pedroli. PO Manel tells PO Pedroli, “He wants to play that fucking game,” and PO Pedroli replies that he can write an additional summons for § 87(2)(b). PO Manel replies that he is going to do that, and that he is going to take his time writing it out because § 87(2)(b) is late for work. At 11:50, PO Manel walks back over to § 87(2)(b) vehicle and asks him to turn on his front left turn signal. PO Manel walks to the front of the vehicle and confirms that the turn signals work on his vehicle and then returns to his vehicle. At 14:50, PO Manel walks back up to § 87(2)(b) and hands him his ID and registration. At 14:55, PO Manel hands § 87(2)(b) a summons and tells him that he did not properly use his left turn signal. § 87(2)(b) asks what the new summons is for, and PO Manel replies that the summons is for disobeying a sign and for failing to signal a turn.

PO Pedroli’s BWC shows the same footage but from a different angle (BR 2).

§ 87(2)(b) testified that on September 2, 2024, at approximately 6:50 a.m., PO Manel and PO Pedroli pulled over § 87(2)(b) via lights and sirens on Second Avenue between East

13th Street and East 14th Street (BR 3). Although PO Pedroli was there, § 87(2)(b) only directly interacted with PO Manel. PO Manel approached the driver's side of the vehicle and § 87(2)(b) asked why he was stopped. PO Manel did not respond to the question and instead asked for § 87(2)(b) license and registration. § 87(2)(b) provided his license and looked for his registration. PO Manel then explained the reason for the stop was for failing to use his turn signal as he turned left turn onto Second Avenue. § 87(2)(b) explained that he was late for work and asked for a break. PO Manel did not respond and walked back to the NYPD vehicle with PO Pedroli. After five minutes, the officers returned § 87(2)(b) documentation. PO Manel said the summons was for disobeying the traffic signage. PO Manel began to walk off while he explained that § 87(2)(b) had 15 days to answer the Summons. § 87(2)(b) shouted that PO Manel was an "asshole." PO Manel stopped walking, turned around and again requested § 87(2)(b) license, which § 87(2)(b) provided. PO Manel then asked § 87(2)(b) to turn his front signal lights on. PO Manel observed the lights before he returned to his vehicle. After approximately five minutes, PO Manel returned to § 87(2)(b) with another summons. PO Manel did not explain what the second summons was for, but § 87(2)(b) noticed it was for failing to signal a lane change. PO Manel walked back towards his vehicle. As he walked away, § 87(2)(b) asked PO Manel for his shield number, which PO Manel verbally provided.

PO Manel provided similar testimony consistent with his BWC footage. PO Manel decided to use his discretion and only issued § 87(2)(b) a summons for disobeying the no-turn sign. When PO Manel returned with the first summons, § 87(2)(b) was disrespectful, and his demeanor was aggressive and did not reflect any care for the situation he was in. § 87(2)(b) called PO Manel a "piece of shit," multiple times. Based on his prior experience with traffic stops, PO Manel noticed that more often than not, drivers who act uneasy, disrespectful, or aggressive during traffic stops tend to have a long history of traffic violations. PO Manel did not check § 87(2)(b) history of violations as § 87(2)(b) had an out-of-state license and the system would only show New York City infractions. PO Manel felt that § 87(2)(b) "needed to learn" what could happen and at this point decided to issue § 87(2)(b) a second summons for failure to signal a left turn. PO Manel requested § 87(2)(b) license and registration for a second time before he returned to his vehicle. PO Manel explained to his partner what happened as he printed out the second summons. After a few minutes, PO Manel returned to § 87(2)(b) vehicle, gave him the summons, and explained what it was for.

PO Pedroli was not interviewed as he did not have any direct interaction with § 87(2)(b) at any point during the traffic stop. The entirety of the incident is also captured on PO Manel's BWC. Therefore, PO Pedroli's testimony would not add any further insight into PO Manel's actions.

§ 87(2)(b) was issued B summons § 87(2)(b) for a disobeyed traffic light (BR 6) and B summons § 87(2)(b) for failed to signal lane change (BR 6).

The signals provided for in section eleven hundred sixty-four shall be used to indicate an intention to turn, change lanes, or start from a parked position and not be flashed on one side only on a parked or disabled vehicle, or flashed as a courtesy or "do pass" signal to operators of other vehicles approaching from the rear. - NY CLS Vehicle & Traffic § 1163D (BR 7). Every person shall obey the instructions of any official traffic-control device applicable to him placed in accordance with the provisions of this chapter, unless otherwise directed by a traffic or police officer, subject to the exceptions granted the driver of an authorized emergency vehicle in this title - NY CLS Vehicle & Traffic § 1110A (BR 8).

In order to effectively carry out their duties, police officers are granted vast discretion in how exactly to perform their work. They have the power to seize property, restrict the freedom of individuals, and, under appropriate circumstances, to use force in the course of their duties. With this discretion comes a responsibility to perform their duties using good judgment and exercise their discretion within the bounds of the law and New York City Police Department ("NYPD") policy – New York City Police Department Disciplinary System Penalty (Page 2) (BR 9). Enforcement

Action involving Abuse of Discretion or Authority: This includes an enforcement action such as an arrest or summons for which there is a lawful basis, however, but for the officer's improper motive, enforcement action would not have been taken – New York City Police Department Disciplinary System Penalty Guidelines (Page 26) (BR 9). [A] Thirteen-year member with no prior disciplinary record forfeits ten vacation days and will receive reinstruction regarding the Department's Courtesy, Professionalism, and Respect policy for issuing summonses as a weapon of retaliation against a complainant who called him a “fucking liar,” in traffic court and another who told him to have a “nice fucking day,” during a car stop. During the incident at traffic court, Respondent also grabbed the complainant by the arm and forced him into the police waiting room without cause. On both occasions, Respondent allowed his personal feelings to cloud his judgment as an officer of the law.– Disciplinary Case No. 80514/04 (BR 10).

PO Manel's BWC confirmed that PO Manel observed § 87(2)(b) committing two motor vehicle infractions § 87(2)(g)

§ 87(2)(g) At the time of the decision to issue the second summons, PO Manel had already returned § 87(2)(b) license and registration and started to walk away towards his vehicle, § 87(2)(g) It was only after the traffic stop seemed to have concluded and § 87(2)(b) called PO Manel a “piece of shit” multiple times that PO Manel issued the second summons. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation A** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) PO Manel has been a member of service for seven years and has been the subject of three CCRB complaints and two allegations, none of which were substantiated § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 9, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 13).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 6

Investigator:	<u>Taylor Jackson</u>	<u>Investigator Taylor Jackson</u>	<u>March 12, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>3/12/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date